

SOTOMAYOR, J., dissenting

conceded, for example, that the allegation that Trump “turned to a private attorney who was willing to spread knowingly false claims of election fraud to spearhead his challenges to the election results” “sounds private.” Tr. of Oral Arg. 29. He likewise conceded that the allegation that Trump “conspired with another private attorney who caused the filing in court of a verification signed by [Trump] that contained false allegations to support a challenge” “sounds private.” *Ibid.*; see also *id.*, at 36–37 (Trump’s counsel explaining that it is not “disputed” that such conduct is “unofficial”). Again, when asked about allegations that “[t]hree private actors . . . helped implement a plan to submit fraudulent slates of presidential electors to obstruct the certification proceeding, and [Trump] and a co-conspirator attorney directed that effort,” Trump’s counsel conceded the alleged conduct was “private.” *Id.*, at 29–30. Only the majority thinks that organizing fraudulent slates of electors might qualify as an official act of the President, see *ante*, at 625–628, or at least an act so “interrelated” with other allegedly official acts that it might warrant protection, *ante*, at 628. If the majority’s sweeping conception of “official acts” has any real limits, the majority is unwilling to reveal them in today’s decision.

Second, the majority designates certain conduct immune while refusing to recognize anything as prosecutable. It shields large swaths of conduct involving the Justice Department with immunity, see *ante*, at 619–621; see also Part V, *supra*, but it does not give an inch in the other direction. The majority admits that the Vice President’s responsibility “‘presiding over the Senate’” is “‘not an “executive branch”

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any party briefed by designating certain conduct official in the first instance. See *ibid.* (noting “the lack of factual analysis in the lower courts, and the lack of briefing on how to categorize the conduct alleged”). In reaching out to shield some conduct as official while refusing to recognize any conduct as unofficial, the majority engages in judicial activism, not judicial restraint.